8

Kartar Singh v State of Punjab

Threats to national security, whether real or imagined, are often a trump card for governments around the world. 'National security' is a shield that protects legitimate government action, but it can often be a cover for a multitude of sins. When governments defend their conduct citing national security concerns, courts tend to freeze. In England, the House of Lords caved in when confronted with a set of sweeping preventive detention regulations during the Second World War. In a celebrated dissenting opinion, Lord Atkin described the decision of the majority as 'more executive minded than the executive'.[1] Just three months later, President Franklin Roosevelt signed an order requiring Japanese Americans to relocate to internment camps in the name of national security and protection against espionage. When Roosevelt's order was challenged, the US Supreme Court abdicated its responsibility to uphold fundamental rights. Justice Robert H. Jackson dissented that day, lamenting that 'the Court for all time has validated the principle of racial discrimination'.[2]

India's corresponding moment was the ADM Jabalpur case of 1976,[3] where the Supreme Court denied citizens' most cherished fundamental rights in response to executive demands for deference during Indira Gandhi's contrived Emergency of 1975. The court held that those who had been detained under preventive detention legislation were effectively barred